

**CLASS JUSTIFICATION AND APPROVAL (J&A)
FOR OTHER THAN FULL AND OPEN COMPETITION
FOR ONLY ONE RESPONSIBLE SOURCE**

JOINT REGION MARIANAS, GUAM

1. Contracting Activity.

Department of the Navy, Naval Facilities Engineering Systems Command, Marianas (NAVFAC Marianas), Architect-Engineering Contracts Branch, Joint Region Marianas, Guam.

2. Description of the Action Being Approved.

Various design and construction projects will specify brand name, King-Fisher fire alarm radio transmitters, which will not provide for full and open competition. This justification only covers the portion of the acquisition which specifies King-Fisher brand name transmitters. The brand name description is essential to the activity's requirements, thereby precluding consideration of a product manufactured by any other company. Authority to act under this class justification expires on 10 July 2027.

3. Description of Supplies/Services.

The existing fire alarm system at Naval Base Guam (NBG) consists of King-Fisher brand radio receivers and compatible King-Fisher fire alarm radio transmitters. The requirement for the King-Fisher brand transmitters ensures reliable and code-compliant fire alarm protection for the affected buildings. Radio fire alarm transmitters must meet the following minimal requirements:

- Equipment shall be listed or approved by a Nationally Recognized Testing Laboratory (NRTL) recognized by the United States Occupational Safety and Health Administration (OSHA) to operate as a system with the existing Base receiving equipment. Existing Base receiving equipment is a Factory Mutual Laboratories Approved King-Fisher Company KFRA-C Emergency Alarm Receiver.
- Equipment shall utilize narrowband radio communication meeting the requirements of national Telecommunications and Information Administration

(Fire AlaNTIA) manual of Regulations and Procedures for Federal Frequency Management.

No additional King Fisher fire alarm radio receivers are anticipated to be installed on NBG. Therefore a maximum of 195 King Fisher fire alarm transmitters can be installed at NBG with an estimated FY22 dollar value of [REDACTED]. Additional NBG capacity rationale can be found in section 5.

4. Statutory Authority Permitting Other Than Full and Open Competition.

The statutory authority permitting other than full and open competition is Title 10 U.S.C. 3204(a)(1) and (b)(B)(i) and (ii) as implemented by the Federal Acquisition Regulation (FAR) 6.302-1 – “Only one responsible source and no other supplies or services will satisfy agency requirements.”

5. Rationale Justifying Use of Cited Statutory Authority.

Only one responsible source and no other supplies or services will satisfy agency requirements. Transmitters operate on an assigned frequency, and in accordance with National Fire Protection Association (NFPA) Code 72, a maximum of 500 transmitters are allowed to be connected to a receiver frequency.

The existing fire alarm system at Joint Region Marianas (JRM) is also a King-Fisher radio system comprised of one King-Fisher fire alarm radio receiver. The maximum capacity for that King-Fisher receiver is 500 transmitters. The receiver currently has 305 King-Fisher fire alarm radio transmitters on-line covering JRM. Projected construction for the Guam buildup through FY27 for MCB Camp Blaz will add approximately 95 transmitters to the existing JRM King-Fisher Radio receiver, increasing the estimated number of connected King-Fisher transmitters to 400. 100 additional transmitters can still be added before the 500 transmitter limit is reached.

Design specification for Interior Fire Alarm System of the solicitation state devices and equipment for fire alarm service shall be listed by Underwriters Laboratories Inc. (UL), or approved by the Factory Mutual (FM) System and shall be compatible and operable with the existing station fire alarm system so as not to impair the reliability or operations functions of the existing supervising station fire alarm system. The purpose of the UL listing and FM approval requirements is to ensure quality, suitability, and reliability of equipment. The UL listing states either that the equipment or material meets appropriate standards or has been tested and found suitable for use in a specified manner. New

manufacturers of fire alarm systems require a minimum of two years to be UL listed and offer no assurance that their transmitters will be compatible with a King-Fisher receiver. FM Approval is based on testing a complete fire alarm system comprised of a fire alarm receiver and transmitter. A fire alarm system of mixed manufacturer equipment is unacceptable because no mixed system has been approved to date. Only King-Fisher fire alarm components in a King-Fisher fire alarm system are FM approved, and therefore, King-Fisher transmitters are required to operate with a King-Fisher receiver. Because there is currently no FM approved mixed system, use of non-King-Fisher transmitters with a King-Fisher receiver would risk diminished fire protection capabilities, and thereby, endanger life and property.

A new King-Fisher transmitter costs approximately [REDACTED]. There are currently 18 FY23 and FY24 projects that are funded for design at NBG that will require a King-Fisher fire alarm transmitter covered by this Class J&A. There are an estimated 21 King Fisher fire alarm transmitters anticipated for these 18 projects for a total value of [REDACTED]. These projects will consist of MAMIZU (Government of Japan funded projects) and Military Construction (MCON) based upon the following schedule:

Table 1: King Fisher Transmitters by Project Type and Fiscal Year

	FY23	FY24
MAMIZU	5	3
MILCON	3	10
Total	8	13

Attachment 1 provides a list of the anticipated projects including the timing, funding source, location and estimated number of the King-Fisher fire alarm transmitters.

Obtaining the transmitters from a non-King-Fisher source would result in substantial duplication of cost to the Government that is not expected to be recovered by competition at this time. Installation of a non-King-Fisher transmitter would require purchasing of a new and compatible radio receiver and any incidental work to accommodate this new radio receiver. A new King-Fisher transmitter costs approximately [REDACTED], while a new radio receiver is approximately [REDACTED] or [REDACTED] times the cost of procuring a King-Fisher transmitter.

Obtaining the transmitters from a non-King-Fisher source would result in unacceptable delays that could endanger life and property until the system is proven reliable. Additionally, the relocation of existing equipment and upgrade of existing supporting utilities would be required to accommodate another receiver, which would cause further delay in fulfilling the Government's requirements. A non-King-Fisher system will also

have unacceptable delay and additional costs in terms of operator training and maintenance.

Motor vehicle dispatchers are the operators of the King-Fisher receivers. The dispatchers are required to perform two years of on-the-job training to be fully qualified. A fully qualified operator of a non-King-Fisher transmitter and receiver will not be possible at the time of installation.

NAVFAC Marianas (NFM) Naval Base Guam maintenance workers are factory trained to maintain and repair the existing King-Fisher transmitters and receivers. Thus, a trained NFM worker would not be available to maintain and repair a non-King-Fisher transmitter and receiver at the time of installation.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable.

On 7 April 2022, an announcement was published on System for Award Management (SAM) in accordance with DFARS 206.302-1 to identify other potential responsible sources of supply that can provide Radio Frequency Alarm Reporting and Monitoring System that can meet the agency's requirements. No responses were received in relation to this announcement; therefore, there are no other known manufacturers of a Fire Alarm Radio Transmitter that can meet the project requirements.

7. Determination of Fair and Reasonable Cost.

The Contracting Officer has determined the anticipated cost to the Government of the supplies/services covered by this J&A will be fair and reasonable.

8. Actions to Remove Barriers to Future Competition.

Although the utilization of a brand name in this project is indicated by this J&A, each future project that includes the King Fisher Fire Alarm Radio Transmitter, outside one year of the 2 May 2022 posting date of the announcement, referenced above, will conduct the same market survey to ascertain the availability of new technology that may provide for other sources to meet the Government's needs. Should any other offers for a compatible Fire Alarm Radio Transmitter be submitted during the source selection process, the Government will consider each as applicable.

For the reasons set forth in Paragraph 5, NAVFACSYSCOM Pacific does not intend to compete future contracts for the types of supplies/services covered by this document. NAVFACSYSCOM Pacific will continue to monitor the controls industry to determine if

a Fire Alarm Radio Transmitter becomes available and if another potential source emerges, NAVFACSYSCOM Pacific will continually assess whether competition for future requirements is feasible.

CERTIFICATIONS AND APPROVAL

TECHNICAL/REQUIREMENTS CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein are complete and accurate to the best of my knowledge and belief.

[REDACTED] [REDACTED] 7/7/2022

[REDACTED] Phone No. Date
NAVFAC PACIFIC
PROJECT MANAGER

LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.

[REDACTED] [REDACTED]

[REDACTED] Phone No. Date
NAVFAC PACIFIC
ASSOCIATE COUNSEL

CONTRACTING OFFICER CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief.

[REDACTED] [REDACTED] 8 July 2022

[REDACTED] Phone No. Date
NAVFAC PACIFIC
A-E CONTRACTS BRANCH MANAGER

APPROVAL

Upon the basis of the above Justification, I hereby approve the solicitation of the proposed procurement(s) described herein using other than full and open competition, pursuant to the authority of 10 U.S.C. 3204(a)(1) and (b)(B)(i) and (ii).

[REDACTED] [REDACTED] 11 July 2022

[REDACTED] Phone No. Date
NAVFAC PACIFIC
A-E/CONSTRUCTION CONTRACTS DIVISION DIRECTOR

Attachment 1 - Project List Guam

Fiscal Year	Project ID	Project Title	Location	Estimated Cost	King-Fisher Transmitter Est Qty
FY24	J-875	Battle Staff Training Facility	MCB Guam		

	NFM
Transmitter value	
# of transmitters	
Transmitter sum	
Construction cost	
% of construction	